

23PSCV00098 23PSCV00098

County: los-angeles

Division: Civil Law and Motion

Department: G

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Case Number: 23PSCV00098 Hearing Date: July 27, 2026 Dept: G

Plaintiff

CMBG Advisors, Inc.'s Ex Parte Application for Temporary Restraining Order and Preliminary Injunction

Respondent: NO OPPOSITION

TENTATIVE

RULING

Plaintiff

CMBG Advisors, Inc.'s Ex Parte Application for Temporary Restraining Order is DENIED.

The

court will set the matter for an ORDER TO SHOW CAUSE RE: PRELIMINARY INJUNCTION.

BACKGROUND

This

is an action for breach of fiduciary duty arising from the defendants' roles as corporate officers of a business. C&F

Foods, Inc. (C&F) was the parent company of C&F Foods Logistics Services, Inc. (C&F Logistics) and Arizona Flexible Packaging, Inc.

(Arizona Packaging), companies engaged in food packing and export. Defendant Luis Faura (Faura) served as C&F's president, chief executive officer, and member of the board of directors while defendant Manuel G. Fernandez (Fernandez) served as C&F's secretary and chairman of the board of directors. Between 2013 and 2020, Faura and Fernandez (collectively, Defendants) allegedly conducted numerous business transactions

to C&F's detriment for their own personal benefit and for the benefit of separate companies they created. On January 15, 2020, on behalf of C&F, C&F Logistics, and Arizona Packaging (collectively, Assignors), Faura made plaintiff CMBG Advisors, Inc. (CMBG) the assignee for the benefit of Assignors' creditors. CMBG alleges Defendants also transferred C&F's assets to their other companies without CMBG's consent.

On January 11, 2023, CMBG filed the Complaint, alleging a single cause of action for breach of fiduciary duty against Defendants.

On July 14, 2026, CMBG filed this ex parte application for temporary restraining order and preliminary injunction, which is unopposed.

This case is set for a status conference, a hearing on a motion to bifurcate, and a hearing on this ex parte application on July 27, 2026.

ANALYSIS

CMBG

seeks a temporary restraining order restraining Defendants and their agents from transferring, selling, moving, encumbering, wasting, disposing, demanding, collecting, receiving, discounting, diverting, using, expending, disbursing, assigning, conveying, devising, pledging, mortgaging, creating a security interest in, or withdrawing from current and former assets, income, revenue, or accounts of certain business entities.

For the following reasons, Plaintiff's application for a temporary restraining order is DENIED.

Legal Standard

A temporary restraining order has the same force and effect as a preliminary or permanent injunction but differs in that it may be issued without notice to the opposing party, without a bond or undertaking, and remains in effect for a limited time, terminating automatically when a preliminary injunction is either issued or denied. (See Weil & Brown, California Practice Guide:

Civil Procedure Before Trial (The Rutter Group 2021) ¶ 9:538.) The court may only grant a temporary restraining order ex parte under limited circumstances.

First,

the applicant “must notify all parties no later than 10:00 a.m. the court day before the ex parte appearance, absent a showing of exceptional circumstances that justify a shorter time for notice.”

(Cal. Rules of Court, rule 3.1203(a); see also Code Civ. Proc., §

527, subd. (c)(2).) Second, the

applicant “must make an affirmative factual showing in a declaration containing competent testimony based on personal knowledge of irreparable harm, immediate danger, or any other statutory basis for granting relief ex parte.” (Cal. Rules of Court, rule 3.1202(c); see also Code Civ. Proc., § 527, subd. (c)(1).)

Discussion

Proper

Notice of Ex Parte Application

The

court finds CMBG gave Defendants proper notice of this application.

The

Code of Civil Procedure requires the applicant to certify that (1) they informed the opposing party the time and place of the hearing on the application within a reasonable time; (2) they attempted in good faith to inform the opposing party about the application; or (3) there are reasons they should not be required to inform the opposing party about the application. (See Code Civ. Proc., § 527, subd. (c)(2).) Under the California Rules of Court, a “reasonable time” to inform the opposing party means “no later than 10:00 a.m. the court day before [the hearing on the application].”

(Cal. Rules of Court, rule 3.1203(a).)

As

a preliminary matter, the court notes that it has jurisdiction over Defendants because CMBG served Defendants in this action, and Defendants are participating in litigation. (See, e.g.,

Ans.) Regarding this specific

application, the hearing was noticed for July 27, 2026, requiring CMBG to give

Defendants notice on or before July 26, 2026 at 10:00 a.m. (See Cal. Rules of Court, rule 3.1203(a).) According to the proof of service attached to

the application, CMBG served Defendants with the application on July 14, 2026. (See Appl., p. 408.) CMBG also corresponded with Defendants about the upcoming hearing by telephone and email that same day. (See Appl., Weber Decl., ¶ 3; see also Appl., Weber Decl., Exh. A.)

Therefore, Defendants received proper notice of this application under Cal. Rules of Court, Rule 3.1203(a).

Irreparable

Harm, Immediate Danger, or Other Statutory Basis for Ex Parte Relief

The

California Rules of Court require an applicant to provide a “declaration containing competent testimony based on personal knowledge of irreparable harm, immediate danger, or any other statutory basis for granting relief.” (Cal. Rules of Court, rule 3.1202(c); see also Code Civ. Proc., § 527, subd. (c)(1).)

“Irreparable harm” means that the defendant’s act constitutes an actual or threatened injury to the personal or property rights of the plaintiff that cannot be compensated by a damages award.

(See *Brownfield v. Daniel Freeman Marina Hospital* (1989) 208 Cal.App.3d 405, 410; see also Code Civ. Proc., § 526, subds.

(a)(4)–(a)(5).) In other words, if the plaintiff may be fully compensated by the payment of damages in the event they prevail, then preliminary injunctive relief should be denied. (See *Tahoe Keys Property Owners’ Assn. v. State Water Resources Control Bd.* (1994) 23 Cal.App.4th 1459, 1471.)

In

support of its ex parte application, CMBG attached the declaration of counsel, Corey R. Weber, Esq. (See Appl., Weber Decl.) As CMBG’s counsel, Mr.

Weber set forth his personal knowledge of the depositions he conducted, the transcripts of which were attached to the declaration. (See Appl., Weber Decl., Exhs. B–K, M.) Mr. Weber represents that the deposition

transcripts demonstrate “Defendants have distributed, transferred[,] and dissipated assets from the Related Entities and Newco Entities,” and “Fernandez

has also dissipated assets through use of Newco Entities’ assets to benefit his adult children and family members and through gifts to family members.” (Appl., pp. 14, 17, capitalization changed.) According to CMBG, this is an inappropriate

use of assets and income which rightfully belong to C&F. (See

generally Appl., pp. 14–18.)

However, even if the deposition testimony evidences that Defendants treated C&F and the other companies as a single enterprise and that CMBG is ultimately likely to succeed on the merits, CMBG failed to demonstrate the inadequacy of legal remedies. The court finds nothing in the record before it to suggest that damages cannot compensate CMBG for the alleged misuse of C&F assets and funds.

Therefore, the court finds that CMBG failed to establish exigency or irreparable harm under Rule 3.1202(c).

Accordingly, the ex parte application for temporary restraining order is DENIED.

CONCLUSION

Based on the above analysis, the ex parte application for temporary restraining order is DENIED.

The court will set the matter for an ORDER TO SHOW CAUSE RE: PRELIMINARY INJUNCTION.